

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 23, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:06 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR - Marian Orr, COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Dicky Shanor and Jeff White. Absent: Scott Roybal. Also attending: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. White, and pursuant to support received by Mr. Cook and Mr. Luna, agenda item #17(a) was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Rinne and Mr. White, agenda item #19(b) was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on November 9, 2020. Motion (per Consent Agenda) carried.

ORDINANCE – 2nd READING – Amending Chapter 10.44, Weight Limits, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. (Postponed from November 9, 2020). Chief Brian Kozak, Police Department, expressed appreciation to all parties involved with their assistance on the ordinance and reported the amendment has been mutually agreed upon by city staff and the trucking industry. Tom Cobb, City Engineer, advised the ordinance was a collaborative effort and voiced appreciation to Chief Kozak for working with the trucking industry. Mayor Orr expressed appreciation to members of city staff and other entities for their work. Sheila Foertsch, Wyoming Trucking Association, thanked all parties involved for the additional work and time spent on the ordinance. Ms. Foertsch advised she is comfortable with the amendment and believes it’s a good product of compromise by all parties. Mayor Orr referenced comments made via the chat function in Zoom in support of the ordinance. Rick Fierro, Ram Trucking, thanked Mr. Cobb and Chief Kozak, noting a lot of time was spent working to refine the ordinance and advised the finished product will be conducive for everyone. Reporting for Public Services Committee, Mr. Cook moved to approve on second reading, seconded by Mr. Luna. Dr. Rinne moved to amend by substitute dated November 23, 2020, seconded by Mr. Cook. Dr. Rinne explained the amendment is the final product of all of the meetings and discussion that has taken place between Chief Kozak and the trucking industry. Upon inquiry, Joe Chenchar, Assistant City Attorney, advised Schedules H & I were submitted and approved by him earlier today. Upon inquiry, Kris Jones, City Clerk, explained the schedules are part of the ordinance and

included in the substitute and do not require a separate motion to approve. Mr. Chenchar explained the schedules are incorporated by reference in the ordinance text. Motion to amend carried. Voting “yes” – all members of the governing body present. Concerns were voiced regarding timing of implementing the ordinance amendment and that due to the Covid-19 Pandemic, small businesses are struggling who participate in the chain of services, noting it could be devastating to them. Comments were made commending the work product and collaboration between city staff and industry partners and additional information was provided on previous comments made in support of the ordinance by members of city staff and the trucking industry. Additional comments were made related to the ordinance amendment not being affected by the Covid-19 Pandemic and that the ordinance requires truckers to abide by state and federal laws when within city limits and that any time is a good time to implement. Discussion included opposition to adding new restricted routes within the city that didn’t exist before. It was further noted that the trucking industry spoke in favor of the ordinance amendments. Main motion as amended carried. Voting “yes” – all members of the governing body present with exception of Mr. Case and Mr. Shanor voting “no”.

ORDINANCE –2nd READING – Amending Section 2.84.070, Board of Adjustment, of Chapter 2.84, Miscellaneous Boards and Commissions, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to correct cross references to the Board of Adjustment. Mr. Cook moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –2nd READING – Amending Section 15.52.060(B), Notification of Issuance or Denial-Appeal, and Section 15.52.100, Variances, of Chapter 15.52, Solar Access Permit System, of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming, to correct cross references to the Board of Adjustment. Mr. Cook moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –2nd READING – Establishing a Planned Unit Development (PUD) District for property generally located northwest of the intersection of North Gate Avenue and Yellowstone Road. Mr. Cook moved to approve on second reading, seconded by Mr. Luna. Upon inquiry, Charles Bloom, Planning and Development Director, advised there was discussion by the Planning Commission related to concern with a sunken garden within the development that may not be ADA compatible. Casey Palma, Stile Surveying Services, agent for owner, reported a sunken garden was designed that will also serve as a detention pond and the owner opted for a walkway to look down on the area. Mr. Palma advised they have and are still looking for possibilities to provide an ADA pathway over the top. He further noted the street has over a 5% grade and that a letter has been submitted by the project architect related to ADA accessibility, noting ADA compliance is not required because it is private and not accessible by the general public. Motion carried. Voting “yes” - all members of the governing body present.

[CA] RESOLUTION - Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$39,348.39 for City of Cheyenne accounts and \$23,290.93 for Board of Public Utilities sanitation accounts pursuant to Wyoming Statute §16-4-502. Motion (per Consent Agenda) carried. (#6102)

[CA] RESOLUTION – Approving water and sanitary sewer services, by Outside User Water and Sanitary Sewer Services Agreements, for Tri-State Generation and Transmission, Lot 4, Block 10, North Range Business Park, 3rd Filing, situated in the NE¼ SE¼ of Section 4, Township 13, North, Range 67 West, of the 6th P.M., Laramie County. Motion (per Consent Agenda) carried. (#6103)

[CA] RESOLUTION – To rededicate unknown funds and unused donations from various accounts within the City of Cheyenne’s Agency Fund – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Repealing a portion of Resolution No. 5951 which pertains to the dedication of General Fund Reserves to design and build a second level on the Cheyenne Municipal Court Building – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Certifying *CONNECT 2045*: Update to the Master Transportation and Future Land Use Plan of PlanCheyenne for the City of Cheyenne and the Cheyenne Urban Area – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for The Enclave at Northgate, a replat of a portion of Lots 6 and 7, all of Lot 8, and the east half of Lots 9 thru 12, Block 19, North Cheyenne 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of North Gate Avenue and Yellowstone Road) – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] Preliminary Plat for Sweetgrass, 5th Filing, a subdivision of a portion of the N ½ of Section 16, Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located south of E. College Drive, east of Sweetgrass Drive). Motion (per Consent Agenda) carried (acknowledged Planning Commission’s recommendation to approve).

Memorandum of Understanding between EQ Capital, LLC, and the City of Cheyenne to build a technology ecosystem in Wyoming focused on investing in tech startups. (Postponed from November 9, 2020). Mr. Luna moved to approve, seconded by Mr. White. Mr. White explained city staff worked to come up with an amendment to address concerns. Upon inquiry, Ms. Jones confirmed that Mr. Laybourn cast an affirmative vote at the November 16th Finance Committee meeting, therefore, the agenda item met Consent Agenda criteria. Mr. White moved to amend by substitute dated November 20, 2020, seconded by Mr. Luna. Appreciation was voiced for the amendment and work by Brendan Ames, Chief Economic Development Officer, Attorney’s office and EQ Capital, noting the amendment removes previous concerns and provides for mutual official recognition that the parties will work together on the project. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with exception of Mr. Laybourn voting “no”. (#7259)

[CA] Development and Maintenance Agreement between Cheyenne-Laramie County Corporation for Economic Development, the City of Cheyenne, and the Cheyenne Business Park Owners Association for the Cheyenne Business Parkway Corridor Plan. Motion (per Consent Agenda) carried. (#7260)

[CA] Grant agreement between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center and the City of Cheyenne Police Department for Law Enforcement Assisted Diversion (LEAD) Program officer overtime and client support (CRMC LEAD Grant) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7221 between the City of Cheyenne and Containment Systems for additional services to complete the Expansion of Landfill Permanent Litter Fence Project (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$17,435.00). (#7221)

[CA] Contract Modification #3 to Contract #5932 between the City of Cheyenne and Solid Waste Professionals of Wyoming, for Happy Jack Landfill Expansion to extend the contract to March 31, 2022 (Solid Waste Fund). Motion (per Consent Agenda) carried. (#5932)

[CA] Contract Modification #1 to Contract #7216 between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center and the City of Cheyenne Police Department for Law Enforcement Assisted Diversion (LEAD) Program (CRMC LEAD Grant) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7117 between the City of Cheyenne and Western Research and Development, Ltd. for additional design services for the 2020 Signal Upgrade Design Services Contract (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-2-21 for a contract between the City of Cheyenne and Casper Electric, Inc., for the 24th / 25th / Carey / Pioneer Traffic Signal Upgrade Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$677,384.84). (#7261)

Consideration of Bid #S-8-21 for a contract between the City of Cheyenne and JTL Group Inc. d/b/a Knife River, for the 2020 Miscellaneous Concrete Project (2015-2018 & 2019-2022 1% Sales Tax). Mr. Luna moved to accept the bid in an amount not to exceed \$443,436.48, seconded by Mr. White. Upon inquiry, Tom Cobb, City Engineer, provided information on locations of concrete work to be completed through the bid. Mr. Cobb reported this phase of the project will exhaust approximately half of available project funding and that the other half will be expended through a future bid for remaining locations planned to be improved. Motion carried. Voting “yes” – all members of the governing body present. (#7262)

No comments were made on the Voucher Report as presented.

Upon inquiry by Mayor Orr, Robin Lockman, City Treasurer, provided information on the September 2020 sales tax collection explaining she received an email from the Department of Revenue that additional revenue was from the Roundhouse Windmill Project in an approximate amount of \$2 million dollars. She further reported that current 6th Penny Sales Tax collection is predicted to be complete by July of 2021, however it could be sooner if sales tax income remains strong. Mayor Orr urged everyone to get together in January to start discussions on future 6th Penny Sales Tax projects and acknowledged that while it seems like a long way away, a lot of planning remains to be done. No further comments were made related to the Revenue Report as presented.

Announcement of a Public Hearing was made to be held December 14, 2020 at 6:00 p.m. via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located southeast of the intersection of Powderhouse Road and Carlson Street.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:40 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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